

§ 350.1. Time of dispositional hearing. 1. If the respondent is detained and has not been found to have committed a designated felony act the dispositional hearing shall commence not more than ten days after the entry of an order pursuant to subdivision one of section 345.1 of this article, except as provided in subdivision three of this section; provided, however, that if the respondent has been found to have committed solely a violation as defined in subdivision three of section 10.00 of the penal law, the respondent shall not be detained pending disposition.

2. In all other cases, the dispositional hearing shall commence not more than fifty days after entry of an order pursuant to subdivision one of section 345.1, except as provided in subdivision three.

3. The court may adjourn the dispositional hearing:

(a) on its own motion or on motion of the presentment agency for good cause shown for not more than ten days; or

(b) on motion by the respondent for good cause shown for not more than thirty days.

4. The court shall state on the record the reason for any adjournment of the dispositional hearing.

5. Successive motions to adjourn a dispositional hearing beyond the limits enumerated in subdivision one or two shall not be granted in the absence of a showing, on the record, of special circumstances; special circumstances shall not include calendar congestion or the status of the court's docket or backlog.